First Steps

Empirical Study of Public Law Litigation

in Sri Lanka's Apex Courts

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Dataset

`SriLankaCourtDecisions` (2012–2022)

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1 Abstract

Key Insights:

The SriLankaCourtDecisions corpus on writs and fundamental rights judgements delivered 2012 to 2022, reveals that:

1. *The Court of Appeal delivers nearly six times more judgments than the Supreme Court annually, yet, its jurisprudence remains systematically understudied;*
2. *Numerically, judgements on writ petitions vastly outnumber judgements on fundamental rights petitions;*
3. *Only 31 from the 1741 judgements on writ petitions from the Court of Appeal were appealed against to Supreme Court, suggesting that at a practical level the Court of Appeal functions effectively as the first and final arbiter of these petitions;*
4. *The Supreme Court takes an average of 4.17 years to resolve Fundamental Rights and Court of Appeal resolves writs faster (mean 3.15 years);*
5. *Land disputes and state employment matters are the dominant themes in appellate jurisprudence;*
6. *The linguistic patterns and decision length in these judgements confirm, empirically, doctrinal hierarchies. Judgements by the Supreme Court are lengthier and more complex in terms of linguistic patterns; and*
7. *At a surface level, institutional stability and number of judgements reveal a relationship that requires further investigation within the Supreme Court as well as when comparing the Supreme Court with the Court of Appeal.*

Keywords: empirical legal research; computational methods; Sri Lanka; Supreme Court; Court of Appeal; fundamental rights jurisdiction; writ jurisdiction; access to justice.

Introduction

In common-law jurisdictions, judicial precedent – formally understood as appellate rulings that bind lower courts on questions of law – determine the authoritative interpretation of the law. As such, precedent occupies a central place in judicial, academic and professional work. In practice, however, it is difficult to assess how precedent is identified or applied by courts. Computational methods, broadly described as the use of data science and artificial intelligence to identify patterns across large datasets, offer a way to move beyond this narrow focus by enabling systematic analysis of the full corpus of case law. These methods enable analysis of large corpora (in this case, all Supreme Court and Court of Appeal judgments in the 11 year window between January 1, 2012 to December 31, 2022) that would be impractical to undertake manually. In doing so, they generate new forms of knowledge that extend beyond jurisprudence driven by landmark rulings. Such knowledge has the potential to unsettle received wisdom and ingrained perceptions about the working of courts. Put differently, computational analysis can make visible dimensions of judicial activity that landmark-focused approaches often obscure.

This article is a first attempt to bring such empirical analysis into the doctrinal and normative study of Sri Lanka's appellate courts. We apply computational methods to analyse judgments of the Supreme Court and Court of Appeal from 2012 to 2022, drawing on a corpus comprising judgments made available online by each court. Using exploratory data analysis, mutual information analysis, and topic modelling, we address three questions. First, what new insights can we obtain when we go beyond the landmark judgment approach (and paradigm) in studying the substance and volume of appellate work? Second, what can patterns in judgements reveal about the relative institutional significance of each court, and about the effects of constitutional change on judicial independence? Third, what do these patterns reveal about access to justice before Sri Lanka's apex courts?

The findings demonstrate that the Court of Appeal's numerical dominance far exceeds its doctrinal recognition; that writ petitions vastly outnumber fundamental rights petitions yet remain understudied, with the Court of Appeal serving as the effective final forum in the overwhelming majority of writ cases; that the constitutional time limit is not adhered to in the determination of fundamental rights petitions while writ petitions before the Court of Appeal are determined more efficiently ; that land disputes and state employment matters dominate appellate dockets; and that linguistic patterns confirm hierarchies embedded in judicial practice. These patterns, we think, have significant implications for access to justice, legal scholarship, and institutional reform.

Section 1 situates this article within the tradition of legal empiricism and judicial statistics research, and describes Sri Lanka's mixed legal system and the structure of its Superior Courts, and examines the judicial branch from 2012 to 2022 in the context of constitutional developments. Section 2 discusses the use of computational methods for the study of courts, briefly. Section 3 describes the compilation of the SriLankaCourtDecisions corpus and the technical challenges encountered in developing the same. Section 4 assesses the methodological, temporal, archival, and technical limitations that apply to the claims we make. Section 5 presents ten empirical patterns identified through our computational analysis, covering the quantitative dominance of the Court of Appeal, the prevalence of writ petitions, systematic delays in delivering judgments, the dominance of land and disputes related to employment by the state, and variations in judicial output correlating with constitutional developments. Section 6 offers an interpretation of these patterns and their implications for the administration of justice, for legal scholarship and for setting reform agendas. Section 7 concludes and we additionally provide a final section where we discuss the directions for future empirical research.

2 Empirical Study of Sri Lankan Courts**

Legal empiricism has been defined as research that includes 'systematic, observational study of law, whether quantitative or qualitative, contemporary or historical, direct or archival'.[1] Within this broad area of legal research, the study of 'judicial behaviour' is in its early days.[2] Data on court cases has been described as 'judicial statistics' and early efforts at reporting on such statistics is dated back to 1872, in the United States.[3] An early example of research on judicial statistics is *The Business of the Supreme Court: A Study in the Federal Judicial System*.[4] This type of research too has been described as the study of judicial behaviour and broadly covers judicial personalities, judicial attitudes and case load.[5] Realists took the view that 'judgments were influenced by personal and social factors, and ought therefore to be analysed not only with reference to statute, precedent, and established legal principle, but also with reference to judges' social backgrounds and political beliefs.'[6]

Empirical legal research confronts methodological constraints: unlike in natural sciences, we cannot establish causal inference from observational data in legal studies.[7] What we can offer are descriptive statistical inferences and a publicly available dataset for verification and further study.[8] A point of comparison may be the US Supreme Court Database.[9] This database is supported by the American National Science Foundation. It contains the cases decided by the US Supreme Court 1791 – 2022 and offers over 'two hundred pieces of information about each case' including the votes of the justices.[10]

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[1] Mark C Suchman and Elizabeth Mertz, "Toward a New Legal Empiricisms: Empirical Legal Studies and New Legal Realism," *Annual Review of Law and Social Science* 6 (2010): 563.

[2] Peter Cane and Herbert M Kritzer, eds., *The Oxford Handbook of Empirical Legal Research* (Oxford University Press, 2010), 1.

[3] Herbert M Kritzer, "The (Nearly) Forgotten Early Empirical Legal Research," in *The Oxford Handbook of Empirical Legal Research*, ed. Peter Cane and Herbert M Kritzer (Oxford University Press, 2010), 877.

[4] Felix Frankfurter and James M Landis, *The Business of the Supreme Court: A Study in the Federal Judicial System* (Macmillan, 1928); Kritzer, "The (Nearly) Forgotten Early Empirical Legal Research," 891.

[5] It further directs you to another sub field of research – judicial studies. See Nancy Maveety, ed., *The Pioneers of Judicial Behaviour* (University of Michigan Press, 2003).

[6] John Baldwin and Gwynn Davis, "Empirical Research in Law," in *The Oxford Handbook of Empirical Legal Research*, ed. Peter Cane and Herbert M Kritzer (Oxford University Press, 2010), 882.

[7] Lee Epstein and Andrew D Martin, *An Introduction to Empirical Legal Research* (Oxford University Press, 2014), 6–7.

[8] Epstein and Martin, *An Introduction to Empirical Legal Research*, 11–12, 15.

[9] http://scdb.wustl.edu/. Accessed 18 April 2024. For a discussion see Carolyn Shapiro, "Coding Complexity: Bringing Law to the Empirical Analysis of the Supreme Court," *Hastings Law Journal* 60 (2008): 477–540.

[10] "The Supreme Court Database," Washington University Law, accessed April 18, 2024, http://scdb.wustl.edu/.

Another point of reference is the Concourtstats of South Africa, a project which provides empirical analysis of the jurisprudence and work of the Constitutional Court of South Africa.[11] One of the aims of this type of an empirical approach is to test received wisdom on theories about the work of the appellate courts.[12] This article attempts to do so in the Sri Lankan context.

The study of jurisprudence of the Sri Lankan apex courts has rarely been supplemented with quantitative analysis. Kishali Pinto Jayawardene's work on the writ of habeas corpus and the work of one of our authors with regard to fundamental rights judgments are two early examples.[13] In her work, Jayawardene offers a quantitative and qualitative analysis of 844 habeas corpus writ petitions. Jayawardene's work established that the habeas corpus writ is ineffective in Sri Lanka, despite the influential jurisprudence in this jurisdiction such as the *Leeda Violet* case and the *Plantain Point* camp case.[14] In *Leeda Violet*, the Court of Appeal held that where a person has been taken into custody and can no longer be found, the state will be held responsible and ordered that compensation be paid. A similar approach was followed in the *Plantain Point* case. These two cases represent a significant development of jurisprudence on the habeas corpus writ. However, Jayawardene's empirical study finds that out of 844 petitions examined, 676 were dismissed, in 163 the persons detained were released and the writ was issued in 19.[15] These findings raise significant questions about the weightage we attach to jurisprudence and judicial precedent, and how we should account for the regular decision-making of courts. We return to these questions later in this article. The empirical approach established by Jayawardene on habeas corpus petitions—examining quantitative patterns alongside doctrinal significance—informs our broader analysis of writ jurisdiction across the Court of Appeal's Article 140 docket and that of the Supreme Court under Article 126.

A more recent example of empirical analysis is the work by Sandani Abeyawardene on topic modelling of judgments of two supreme courts: that of Sri Lanka (2013-2020) and the United Kingdom (2009 –

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[11] "ConCourtStats: Constitutional Court of South Africa Statistics," ConCourtStats Project, https://concourtstats.co.za/.

[12] For a discussion on the relationship between empirical legal research and theory, please see Denis J Galligan, "Legal Theory and Empirical Research," in *The Oxford Handbook of Empirical Legal Research*, ed. Peter Cane and Herbert M Kritzer (Oxford University Press, 2010), p. 981.

[13] Kishali Pinto-Jayawardena, *Habeas Corpus in Sri Lanka: Theory and Practice of the Great Writ in Extraordinary Times* (Law & Society Trust, 2011); Dinesha Samararatne, "Recent Trends in Sri Lanka's Fundamental Rights Jurisdiction," *Bar Association Law Journal* 22 (2016): 234–46; Dinesha Samararatne, "Judicial Interpretation of Human Rights 2018, 2019 and 2020," in *State of Human Rights 2018-2020* (Law; Society Trust, 2023).

[14] *Leeda Violet v OIC Dickewella* [1994] 3 Sri LR 377; *Machchavallavan v Army Camp, Plantain Point* [2005] 1 Sri LR 341.

[15] Pinto-Jayawardena, *Habeas Corpus in Sri Lanka*, 87 ff.

2022).[16] Abeyawardene uses Latent Dirichlet Allocation (LDA) with Machine Learning for Language Toolkit (MALLET) to identify the most significant topics in the jurisprudence of each jurisdiction. Beyond these contributions, empirical legal research in Sri Lanka has been rare.[17] Neelan Tiruchelvam's work on mediation boards is perhaps an early example of empirical legal work.[18] Tiruchelvam's work is also identified as an example of the law and society approach to the law in Sri Lanka. More recent examples of this approach would be one of our author's work on pioneering women in Sri Lanka's legal profession and on Sri Lanka's first Election Commission.[19]

In relation to fundamental rights jurisprudence, through a simple descriptive analysis of the type of fundamental right most commonly invoked in judgments on fundamental rights since 2006, one of our authors has established two key findings. One is that the most commonly invoked fundamental right is Art 12, that is the right to equality. Of the 303 judgements issued 2010 to 2020, 258 invoked the right to equality.[20] The second is that this Article is overwhelmingly invoked by public servants to challenge recruitments, transfers or promotions by the state as an employer.[21] Here too, there is an interesting contrast between jurisprudence and judicial precedent as interpreted through the conventional approach to law and the empirical examination of cases. Jurisprudentially, significant developments have been achieved by the Sri Lankan judiciary with regard to several fundamental rights. For instance, courts have recognized that the right to be free from torture includes the right to be free from sexual violence.[22] Courts have recognized new rights, such as the rights of persons with disabilities and rights to the environment.[23] The distinction between fundamental rights jurisdiction and writ jurisdiction—often treated as blending in scholarly discourse—is confirmed empirically by differences in volume, forum, timing, and outcomes, as demonstrated in Section 4.

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[16] Sandani Yapa Abeywardena, "Reading Supreme Courts from Afar: Topic Modelling Judgements of the Supreme Courts of Sri Lanka and the United Kingdom," *University of Colombo Review* 4, no. 1 (2023): 1.

[17] Suchman and Mertz, "Toward a New Legal Empiricisms," 563.

[18] Neelan Tiruchelvam, *The Ideology of Popular Justice in Sri Lanka: A Sociolegal Inquiry* (Vikas, 1984).

[19] Dinesha Samararatne, "Sri Lanka's First Election Commission: Strengthening Electoral Management or Advancing Electoral Integrity?" *Asian Journal of Comparative Law* 16, nos. Supplement S1 (2021): S156–76.

[20] Samararatne, "Judicial Interpretation of Human Rights 2018, 2019 and 2020," 14.

[21] Samararatne, "Recent Trends in Sri Lanka's Fundamental Rights Jurisdiction," 238.

[22] *Yogalingam Vijitha v Wijesekera* SC/FR/186/2001 (SC Minutes 28 August 2002).

[23] See for instance, *Perera v Minister of Social Services and Social Welfare* SC/FR/273/2018, SC Minutes 18 April 2019 (disability rights); *Kariyawasam v Central Environmental Authority* SC/FR/141/2015, SC Minutes 4 April 2019 (rights and principles relating to the environment).

The analysis offered here is exploratory and descriptive, not normative. The triangulation of quantitative analysis with qualitative analysis remains for future research. For a fuller discussion of the methodological and data-related constraints affecting this study, see section 4.

1.1 The Development of the Legal System

Sri Lanka's modern legal system has been shaped by its encounters with colonialism. Today it is one of the three mixed legal systems in the world.[24] Between 1505 CE to 1948 CE, a long period of 443 years, Sri Lanka was under partial colonial rule of the Portuguese, the Dutch, and, finally, under the complete control of the British. In 1972, it became a republic. During this time, the colonisers established court systems, introduced their laws and established legal institutions.[25] The Portuguese had the least amount of territorial as well as political control whereas the Dutch had significant control over Sri Lanka's maritime provinces.[26] The British, unlike the other two colonial powers, gained and maintained total control over the whole island for over 130 years. Sri Lanka was a crown colony since 1802. Sri Lanka's Supreme Court, established in 1801 is known to be one the oldest in the region and Sri Lanka was the first crown colony to have a jury system.[27]

Due to the establishment of a court system by the Dutch, the Roman-Dutch law was established as Sri Lanka's common law. Today, the Roman-Dutch law applies in relation to property and persons while English common law is recognized as the law that may be used to fill in lacunae in legislation. During its long colonial rule, the British laid a firm foundation for Sri Lanka's legal system. The Dutch recognized, codified and applied what was described as 'personal laws' or laws/customs of distinct ethnic/religious communities in the Island; the Tesawalamai, Muslim law and the Kandyan law.[28] In keeping with their general policies, the British continued to recognize these laws and the Roman-Dutch law that had been introduced by the Dutch. Selectively and systematically, the British introduced legislation and English common law during their rule. This resulted in a complex and mixed legal system that continues to remain in place. Sri Lanka declared itself a Republic in 1972 and has since then had two constitutions. The current Constitution, enacted in 1978 has been amended 21

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[24] The other two mixed legal systems are Scotland and South Africa.

[25] Nadeera Rupesinghe, *Law Making in Dutch Sri Lanka: Navigating Pluralities in a Colonial Society* (Tambapanni Press, 2024).

[26] L J M Cooray, *An Introduction to the Legal System of Sri Lanka* (Lake House, 1992), 1 ff.

[27] Charter of Justice 1801 and Charter of Justice 1810 established the Supreme Court and trial by jury respectively.

[28] See, for instance, Matrimonial Rights and Inheritance (Jaffna) Ordinance No 1 of 1911; Muslim Marriage and Divorce Act No 13 of 1951; Kandyan Law Ordinance No 39 of 1938.

times.

In this context, the law in Sri Lanka is developed through multiple avenues: constitutional reform, legislation, case law, regulations and sometimes even through policies. Case law is the primary means of developing the law in several areas including constitutional law, administrative law, criminal law, land law, family law and the law of damages. In the case of public law, judicial precedent determines how the relevant legal basis (constitution, legislation or the common law) is applied. In the case of land law and family law, legislation applies along with the Roman Dutch law. The law of damages is governed primarily by the Roman-Dutch law. Case law is central to the development of the law both in the substantive and procedural sense in Sri Lanka. The Supreme Court is the highest court with the exclusive mandate to interpret the Constitution and decisions of this Court bind all courts on all aspects of law.[29]

Delays in the Sri Lanka court system are extensive. In 2017, a Parliamentary Select Committee found that it takes an average of 17 years for a criminal case to be concluded.[30] The lower courts are under the authority of Sri Lanka's Judicial Service Commission (JSC). In its annual report, the JSC records the number of cases filed, concluded etc. However, similar reports are not available for the Court of Appeal and Supreme Court on an annual basis.

1.2 Superior Courts and Access to Judgments

1.2.1 Publication and Reporting History

Judgments of the Supreme Court and the Court of Appeal from the years 1809 to 1978 are recorded in volumes titled the 'Ceylon New Law Reports'. Although Sri Lanka gained independence from Britain in 1948, it remained under the Dominion of the British Crown and was known as the Dominion of Ceylon. It was only in 1972 upon the adoption of an autochthonous Republican Constitution, that Sri Lanka gained complete independence from the British Crown and became the Democratic Socialist Republic of Sri Lanka. Starting from 1978, upon the adoption of the Second Republican Constitution, select judgments of the Supreme Court were published in volumes titled the 'Sri Lanka Law Reports'. The judgments that would be reported in this way were selected by a committee of Justices of the Court, headed by the Chief Justice. Physical copies of judgments recorded in both the Ceylon New Law Reports and the Sri Lanka Law Reports are available at the

[29] Art 118 of the Constitution read with Art 120.

[30] *Recommendations Pertaining to the Expeditious and Efficient Administration of Criminal Justice* (Sectoral Oversight Committee on Legal Affairs (Anti-Corruption) & Media, Parliament of Sri Lanka, 2017), 4.

National Library in Colombo, and digital copies are available on the website run by the Ministry of Justice (https://www.lawnet.gov.lk).

1.2.2 Digitization and Contemporary Access

Since 2012, all judgments of both apex courts are also available as digital copies, accessible on the official government websites of the Supreme Court (https://www.supremecourt.lk) and the Court of Appeal (https://www.courtofappeal.lk).[31] This led to a paradigm shift in terms of access to the jurisprudence of the apex courts. Prior to this, accessing judgments presented practical challenges. Until a case was reported, access to the judgment could only be through a party to the case or through a formal application to the relevant court registry along with the payment of the required fees. Unreported judgments were not known or accessible except through personal knowledge of such case or through media reports.

The official government websites for both the Supreme Court and the Court of Appeal have published judgments made by the apex courts from 2009 onwards. The Sri Lanka Law Reports continue to be published and the judgments reported in those volumes continue to exert influence in judicial decision making. Under the present Constitution, both the Supreme Court and the Court of Appeal are each, a 'superior court of record'.[32] While all judgements of these courts are now digitally accessible, in general, when matters are dismissed, courts do not provide a written judgement.

1.2.3 Barriers to Comprehensive Study

Two significant barriers impede comprehensive assessment of Sri Lanka's apex courts. First, prior to 2012, only judgments selected by an editorial committee were published in the Law Reports; no comprehensive record exists of judgments from 1809 to 2011. Second, filing statistics are not publicly available, leaving researchers with access only to the number of judgments delivered, and only post-2011. These archival and transparency gaps are discussed further in section 4.

This raises important questions: (1) how does the law develop if the database of judgments is incomplete in a legal system that is reliant on judicial precedent? (2) is the jurisprudence that guides landmark decisions of the apex courts today an accurate representation of the cumulative jurisprudence that is unrecorded? and (3) can a discovery of these inadequacies through the use of computational methods change our perception of what we believe to be the content of the law? We

[31] Supreme Court and Court of Appeal sites had invalid SSL certificates at the time of data scraping and initial writing.

[32] Article 105(3) of the Constitution.

aim to answer these questions to some extent through the application of computational methods to our data.

1.3 Institutional Context 2012-2022

When examining the work of the Sri Lankan appellate courts for this time period, it is necessary to bear in mind the relevant constitutional developments. The enactment of the 18th Amendment in 2010 had established the strongest Executive Presidency that Sri Lanka has had so far.[33] The 18th Amendment removed the two-year term limit of the President, repealed the Constitutional Council and replaced it with a Parliamentary Council. The President, who had full immunity during office, appointed justices of the appellate courts. From 2010 to 2015, the Government enjoyed a 2/3 majority in Parliament, the support required for amending the constitution as well as for enacting laws that are inconsistent with the constitution except the entrenched clauses.[34]

In 2012, the then Chief Justice was impeached despite resistance by the domestic legal community and international criticism.[35] During this year only 9 judgments were issued by the Supreme Court under Article 126.[36] Between 2011 and 2014, the total number of judgements issued under Article 126 was 50.[37] With the change of government in 2015, the 19th Amendment was enacted. Among other things, it recognized the right to information, provided that fundamental rights petitions may be filed to challenge the actions of the President and re-introduced a revised Constitutional Council.[38] The issue related to the purported impeachment of the Chief Justice was addressed through executive action.[39] Several of the appointments to the superior courts during this period received widespread acceptance. In contrast to the number of judgments on fundamental rights issued 2011 to 2014, the number issued between 2015 and 2020 was 227.[40]

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[33] Rohan Edrisinha and Aruni Jayakody, *The Eighteenth Amendment to the Constitution: Substance and Process* (Centre for Policy Alternatives, 2011).

[34] Article 83 of the Constitution.

[35] Dinesha Samararatne, "Resilience Through Synergy? The Legal Complex in Sri Lanka's Constitutional Crisis," *Asian Journal of Law and Society* 9 (2022): 6 ff.

[36] Dinesha Samararatne, "Judicial Interpretation of Fundamental Rights," in *Sri Lanka: State of Human Rights 2017* (Law & Society Trust, 2017), 39.

[37] Samararatne, "Judicial Interpretation of Fundamental Rights," 39.

[38] Asanga Welikala, ed., *Nineteenth Amendment to the Sri Lankan Constitution* (Centre for Policy Alternatives, 2016).

[39] "Justice Triumphs!" *Daily FT*, 2015.

[40] Samararatne, "Judicial Interpretation of Human Rights 2018, 2019 and 2020," 14.

The political cohabitation that was established between the President and the Prime Minister in 2015 eventually broke down during this time, as evidenced by the constitutional crisis of 2018.[41] The President unconstitutionally removed the Prime Minister and appointed former President Mahinda Rajapaksa. Parliament was dissolved by the President prematurely. Two petitions were filed, in the Court of Appeal and Supreme Court respectively. The writ petition sought a writ of quo warranto against the new and purported Prime Minister while a fundamental rights petition was filed by the then Opposition claiming that the unconstitutional dissolution was a violation of the right to equality.[42] In both cases, the claims were upheld and the status quo ante was restored by January 2019. However, in April 2019, the Easter Sunday attacks took place. Soon thereafter the Prime Minister alleged that he had not been invited to attend the meetings of the National Security Council.[43] Due to these developments, the 19th Amendment was perceived to be unworkable and unsuitable for Sri Lanka. Presidential candidate Gotabaya Rajapaksa pledged to repeal it and restore the Executive Presidency as it was established under the 1978 Constitution. Soon after winning the elections that year, the 19th Amendment was repealed. The 20th Amendment repealed the Constitutional Council and established (yet again) a Parliamentary Council.[44]

During this same time, the Covid-19 pandemic spread, becoming a catalyst for another crisis in Sri Lanka which reached its peak in 2022 when the country defaulted on its foreign debt payments.[45] 2022 was a year of significant suffering across Sri Lanka due to shortages in electricity and LPG cooking gas among others. It was also a time of political and public unrest. These developments led to the unprecedented mobilization of the public who made many political demands, broadly described as demands for a 'system change'.[46] The then President, Prime Minister and the Cabinet were compelled to resign. A new President was elected from Parliament as required by the Constitution.

2. Use of Computational Methods for Study of Courts

[41] Asanga Welikala, ed., *Constitutional Reform and Crisis in Sri Lanka* (Centre for Policy Alternatives, 2019).

[42] *Sampanthan v AG* SC/FR/351-356, 358-361/2018, SC Minutes 13 December 2018; *Wickremesinghe v Rajapakse* CA/WRIT/363/2018.

[43] Samararatne, "Resilience Through Synergy? The Legal Complex in Sri Lanka's Constitutional Crisis," 12.

[44] Dinesha Samararatne, "Sri Lanka's Guarantor Branch: Constitutional Resilience by Stealth?" in *Constitutional Resilience Beyond Courts: Views from South Asia*, ed. Tarunabh Khaitan et al. (Hart, 2023), 265 ff.

[45] Umesh Moramudali, "Sri Lanka's Foreign Debt Crisis: Deep Roots?" in *Routledge Handbook of Contemporary Sri Lanka*, ed. Kanchana N Ruwanpura and Amjad M Saleem (Routledge, 2025), 147.

[46] Jayadeva Uyangoda, *Localising Democracy and Democratisation in Non-Western Societies: Insights from Sri Lanka's Experience* (Social Scientists' Association, 2024).

Computational methods have already been used to study courts of several jurisdictions.[47] Computational Social Science enables the collection and analysis of data at a scale previously unattainable.[48] These methods are applied within a 'law as data' approach.[49] They promise the same benefits that general quantitative legal research prioritises, but on a scale that is unparalleled and previously unattainable manually. The potential that computational methods hold for data analysis pertaining to a judicial system, however, must be evaluated with caution. These methods carry the same methodological constraints as quantitative empirical research generally: correlation cannot be assumed to indicate causation.[50] The sheer volume of data processable via computational methods runs the risk of concealing these limitations. The methodological constraints are discussed in section 4.

With due recognition of the constraints that apply, the potential that computational methods hold for the study of courts is substantial. While failing to demonstrate causal relations, the ability to process data in quantities far beyond what would be possible manually produces results that can both reveal the realities of the judicial system and discern patterns in judicial workload and output on a scale that would have previously been impossible. In doing so, the findings of research by way of computational methods could serve to confirm concerns or characteristics already suspected of the court system or provide direction towards areas warranting further investigation. Collectively, it holds promise to pave the path towards judicial and legal system reform where required. The necessity of interpreting the empirical alongside the normative and doctrinal, and not in isolation, only increases in importance during the formulation of any such reform.

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[47] Aparna Chandra et al., *Court on Trial: A Data-Driven Account of the Supreme Court of India* (Penguin, 2023).

[48] David Lazer et al., "Computational Social Science," *Science* 323, no. 5915 (2009): 721–22.

[49] Jens Frankenreiter and Michael A Livermore, "Computational Methods in Legal Analysis," *Annual Review of Law and Social Science* 16 (2020): 19, 42.

[50] Madhav Khosla, "Is a Science of Comparative Constitutionalism Possible?" *Harvard Law Review* 135 (2022): 2110.

3 SriLankaCourtDecisions: Court Decision Texts Sri Lanka Dataset

We compiled the SriLankaCourtDecisions dataset by scraping the official websites of Sri Lanka's Supreme Court and Court of Appeal for judgments delivered between 1 January 2012 and 31 December 2022. The resulting corpus comprises 1278 Supreme Court judgments and 7314 Court of Appeal judgments. Data availability determined our choice of time period. The dataset will be available for use at [URL/DOI to be provided upon release].

The constitution establishes distinct forums for public law remedies. Article 140 confers on the Court of Appeal jurisdiction to issue prerogative writs—certiorari, mandamus, prohibition, and others—for judicial review of administrative action, tribunal decisions, and jurisdictional errors. Article 126 vests the Supreme Court with exclusive jurisdiction over fundamental rights petitions alleging constitutional violations. The Supreme Court's original writ jurisdiction, by contrast, is narrowly circumscribed: Article 104H, for instance, limits such jurisdiction to election-related matters.

The empirical distribution confirms this constitutional design. Of the 1,278 Supreme Court decisions in the dataset, only 4 (0.3%) were original writ petitions under Article 104H. The Court of Appeal, by contrast, issued 1,741 writ decisions (23% of its docket) during the same period. In original writ jurisdiction, the Court of Appeal handles 435 times more cases than the Supreme Court. This stark disparity reflects the constitutional allocation of writ jurisdiction to the Court of Appeal as the primary forum for administrative law and judicial review.

3.1 Data Collection and Processing

Scraping the two court websites presented minimal technical barriers, as both are static sites without rate limiting or IP-blocking mechanisms.[51] The primary challenges were extended server downtimes that interrupted scraping routines and expired SSL certificates that generated runtime warnings. We converted the downloaded PDF files using PDFMiner[52] with default parameters, preserving document structure while extracting text content. A small number of judgments (fewer than 10 across the entire collection) required Optical Character Recognition (OCR) conversion; we excluded these to maintain consistency in text extraction methodology and data quality.

[51] The official websites are available at supremecourt.lk and courtofappeal.lk. Scraping was conducted between February 2023 and April 2023 using custom Python scripts.

[52] PDFMiner.six version 20221105 was used for PDF text extraction.

Both websites contained substantial duplicate entries. Following deduplication based on case number and decision date, the corpus comprised 1278 Supreme Court judgments and 7314 Court of Appeal judgments, as shown in Table 1. The deduplication process identified duplicates through exact matching of case numbers combined with decision dates; in instances where the same case number appeared with different dates, we retained the entry with the more complete judgment text.

Table 1: SriLankaCourtDecisions dataset composition and descriptive statistics (SD = standard deviation)

	Number of judgments	Mean token count (SD)
Supreme Court	1278	3646 (3038)
Court of Appeal	7314	1688 (2091)
Full corpus	**8592**	**1979 (2361)**

3.2 Dataset Structure

The dataset contains eight fields for each judgment: decision date (str), case number (str), court name (str), case filed year (str), judge (str), bench (str), link to original decision (str), and decision text (str). The 'judge' field identifies the justice who authored the judgment, while 'bench' lists all justices who constituted the bench during hearings. These fields enable analysis of individual judicial contribution and bench composition patterns over time.

Extracting structured data from the court websites presented several challenges. Case numbers follow non-standardised formats that vary by court, case type, and year, requiring custom parsing rules. Judge and bench information, while generally present, appears inconsistently across judgments – sometimes in formal headers, sometimes within the judgment text itself. We extracted this information using a combination of regular expressions and manual validation of a sample subset.

3.3 Descriptive Statistics and Characteristics

The token count statistics in Table 1 reveal marked differences between the two courts. Supreme Court judgments average 3646 tokens with substantial variation (SD = 3038), reflecting the court's role in addressing complex constitutional matters and questions of law alongside its appellate functions. Court of Appeal judgments average 1688 tokens (SD = 2091), consistent with a higher-volume appellate court addressing a broader range of routine matters. The high standard

deviations in both courts indicate considerable heterogeneity in judgment length, ranging from brief orders to extensive reasoned judgments spanning dozens of pages.

The numerical dominance of Court of Appeal judgments (7314 versus 1278) reflects the courts' different positions in Sri Lanka's judicial hierarchy and their distinct jurisdictional mandates, as discussed in section 2. This 5.7:1 ratio has implications for understanding the relative contribution of each court to the development of case law, a pattern we explore further in section 5.

3.1 Patterns Beyond Precedent

The empirical analysis of SriLankaCourtDecisions reveals patterns that challenge received assumptions about the nature and distribution of judicial work in Sri Lanka's appellate courts. These insights emerge from both descriptive statistics—the volume, timing, and length of decisions—and computational methods including topic modelling and mutual information analysis. Together, they expand the landmark case-focused understanding of judicial work by making visible the patterns that structure day-to-day judicial practice. These insights therefore broaden, deepen, and complicate our understanding of the jurisprudence on fundamental rights and writs, and of the work of the courts more broadly.

5.1. Six-to-one: Greater numerical output by the Court of Appeal

[The Court of Appeal issued nearly 6 times as many judgments as the Supreme Court in a given year.][image1]

Figure 1: The Court of Appeal issued nearly 6 times as many judgments as the Supreme Court in a given year.

The Court of Appeal issued nearly six times as many judgments as the Supreme Court in a given year. As demonstrated in Figure 1, this pattern holds consistently across the decade under study. The Court of Appeal averaged 665 decisions per year compared to the Supreme Court's 116 decisions.

The numerical difference between writ petitions and fundamental rights petitions is substantial. Of the 7,314 Court of Appeal decisions in the dataset, 1,741 (23%) were judgments on writs. Of the 1,278 Supreme Court decisions, 361 (28%) were judgments on fundamental rights petitions. Judgments on writs are far greater in number than judgments on fundamental rights. While writ petitions substantially outnumber fundamental rights petitions in absolute terms, we note that these remedies are administered by different courts under different procedural rules: writs predominantly by the Court of Appeal under Article 140, and fundamental rights exclusively by the Supreme Court under Article 126.

The Supreme Court's engagement under its writ jurisdiction has been minimal during the period under review. Of the 1,278 Supreme Court decisions, 4 were original writ petitions under Article 104H (election-related writs) and 31 were appeals from Court of Appeal writ decisions (identified through normalized pattern matching for case references to Court of Appeal writ applications)—together comprising only 2.7% of the Supreme Court's docket. The Court of Appeal's

1,741 writ decisions thus vastly outnumber not only the Supreme Court's original writ jurisdiction but also subsequent appellate review.

This pattern has structural explanations. The Court of Appeal has a greater number of justices than the Supreme Court.[53] More significantly, it is a court of first instance for writ applications under Article 140 and Article 141, whereas the Supreme Court exercises appellate jurisdiction with the exception of its original jurisdiction under Article 126 (fundamental rights) and Article 129 (election petitions) and some other matters.[54] The Court of Appeal thus handles both original writ petitions and appeals from lower courts across civil, criminal, and administrative matters. Moreover, benches in the Court of Appeal comprise two justices each whereas benches in the Supreme Court comprise three. Upon request and at the discretion of the Chief Justice, bigger benches may be constituted for the Supreme Court. As a result, it may take longer for benches of the Supreme Court to finalise judgements. The Supreme Court determines questions of law and arguably therefore, the task of judicial decision-making requires more time.

5.2. Court of Appeal as the (Effectively) Final Arbiter on Writs

The Court of Appeal's dominance in writ jurisdiction extends beyond volume to practical finality. During the period 2012-2022, the Supreme Court decided only 31 appeals from Court of Appeal writ decisions—compared to 1,741 writ decisions issued by the Court of Appeal during the same period, as shown in Table 2.

Table 2: Court of Appeal Writ Decisions vs Supreme Court Appeals (2012-2022)

Metric	Value
CA Writ Decisions	1,741
SC Appeals from CA Writs	31
Implied Appeal Rate	**1.8%**
Average SC Appeals per Year	2.8
Average CA Writs per Year	158

[53] Until 2020, the Supreme Court comprised the Chief Justice and six to ten Justices. Subsequent to the 20th Amendment the number was increased to the Chief Justice and six to sixteen (Article 118 as amended). Until 2020 Court of Appeal comprised the President and six to eleven Justices. Subsequent to the 20th Amendment it comprises the President of the Court of Appeal and six to nineteen (Article 137 as amended).

[54] For instance, see Article 118 of the Constitution.

The ratio of SC appeals to CA writ decisions (31:1,741) suggests an appeal rate around 1.8%. This ratio remained consistently low across the decade, with an average of 2.8 appeals annually. While we cannot track individual case cohorts through the appellate system, due to gaps in the digitisation of case records, the low ratio of SC appeals to CA writ decisions indicates that the Court of Appeal functions as the effective final arbiter in the overwhelming majority of writ cases.

The numerical dominance of the Court of Appeal translates into greater practical impact in dispute resolution. Based on the relative volumes during this period, for the vast majority of litigants seeking writ remedies, the Court of Appeal is not merely the first forum but the only forum too. The data suggest that the Supreme Court's appellate jurisdiction over Court of Appeal writs, while constitutionally available under Articles 127-128, is rarely invoked in practice.

Three non-exclusive explanations may account for this low ratio. First, litigants may be satisfied with Court of Appeal writ determinations and choose not to pursue further appeal. Second, the Supreme Court's leave requirements for appeals may present a significant barrier, filtering out cases that do not meet the threshold for further review. Third, Court of Appeal writ remedies may effectively resolve the underlying disputes, rendering further litigation unnecessary or impractical. Determining which explanation predominates would require further investigation into leave applications, reasons for grant or refusal of leave, and longitudinal tracking of individual cases from the Court of Appeal through potential Supreme Court appeals. Interviews with litigants, practitioners, and justices would further reveal the reasons for this implied appeal rate.

5.3. Patterns in the number of judgements within each court and between the two courts

Overall, in the period under review, the Court of Appeal averaged 665 decisions per year compared to the Supreme Court's 116 decisions. The Court of Appeal has consistently delivered more judgments than the Supreme Court throughout the decade. The Supreme Court's output varied substantially across the decade. The court delivered 175 decisions in 2016 and 203 in 2017—the two highest annual totals in the period. Between 2012-2015, the court averaged 68 decisions per year. Between 2016-2022, it averaged 144 decisions per year, as shown in Figure 2.

[Supreme Court and Court of Appeal decision output 2012-2022][image1]

Figure 2: Supreme Court and Court of Appeal decision output 2012-2022

We noticed that the variation in the number of judgements in the Court of Appeal ranged from a low of (…) in 2015 to a high of 1109 in 2013. In the Supreme Court, the lowest number of judgements was

issued in 2013 (…) and the highest number of judgements was issued in 2017 (…). Broadly speaking an inverse relationship is observable between the two courts and the increase/decrease in the number of judgements. When the number of judgements issued by the Court of Appeal increases, a decrease can be noticed in the Supreme Court. Identifying reasons for this pattern will be difficult, particularly because the data only includes the judgements that have been issued, not the number of petitions that have been filed.

The increase in Supreme Court output following 2015 coincides with constitutional reforms aimed at enhancing judicial independence, particularly the enactment of 19th Amendment which restored the Constitutional Council and thereby also reformed the process for judicial appointments.

The relationship between judicial independence and judicial productivity, if any, is difficult to study. Enhanced independence may increase a court's willingness to hear cases, may improve litigant confidence in seeking relief, or may reflect institutional changes that increase court capacity. Conversely, periods of judicial crisis or perceived lack of independence may depress both filing rates and adjudication rates. In this dataset, the 2013-2015 period, marked by the purported impeachment of the Chief Justice and broader concerns about judicial independence under the 18th Amendment, saw depressed output. The post-2015 period, marked by constitutional reforms enhancing independence, saw dramatic increases in output.

However, correlation does not establish causation. This pattern therefore requires further investigation beyond the current data. Multiple factors influence judicial output including the number of justices, case filing rates, procedural reforms, administrative efficiency, and judicial attitudes. The constitutional developments of this period provide one plausible explanation for the observed patterns, but a fuller account would require analysis of additional variables including appointment patterns, case filing statistics, and institutional resources.

5.4. Less time before Court of Appeal than before the Supreme Court

[37% of Supreme Court decisions and 48% of Court of Appeal decisions took more than five years to be delivered.][image2]

Figure 3: 37% of Supreme Court decisions and 48% of Court of Appeal decisions took more than five years to be delivered.

As shown in Figure 3, 37% of Supreme Court decisions and 48% of Court of Appeal decisions took more than five years to be delivered. The temporal patterns that we developed from the dataset reveal

an additional dimension to the numerical gap which we have discussed above. The average time taken for writ decisions in the Court of Appeal was 3.15 years (2.80 SD) against 4.17 years (3.05 SD) for fundamental rights petitions in the Supreme Court. 25% of writs in the Court of Appeal were decided within a year of filing compared to only 20% of fundamental rights petitions in the Supreme Court resolved within one year. This comparative performance is particularly notable given that, unlike fundamental rights petitions, no constitutional or common law time limit exists for judgements on writ petitions. The practical procedures are comparable in both jurisdictions, yet the court without a stipulated time limit performs better.

The Supreme Court website lists the date on which each decision was issued. The Court of Appeal website, on the other hand, groups decisions by the month and the year and does not list the date. Further, since the registries of both courts were not digitised during the period under review, for both courts, there is no way of knowing the date on which an application related to a decision was filed. Under these constraints, calculating the exact time taken to deliver decisions is not possible.

To approximate the date on which an application was filed, we extracted the year in which the application related to a decision was filed from the application (or case) number. For example, the case number SC/FR/123/2012 indicates that the application was filed in 2012. Assuming that filing of applications is distributed uniformly through the year, we approximated the date of filing as {extracted_year}-June-30 for all cases across the two courts. Making the same assumption, we approximated the date of decision delivery in the Court of Appeal as {given_year}-{given_month}-15. We then calculated the time taken to deliver a decision as the difference between the date of decision delivery and the date of application filing.

[Court of Appeal writs petitions resolve faster than Supreme Court FR applications][image3] Figure 4: Court of Appeal writs petitions resolve faster than Supreme Court FR applications

As demonstrated in Figure 4, Court of Appeal writ petitions resolve faster than Supreme Court fundamental rights applications.

Unlike fundamental rights petitions, no constitutional or common law time limit governs the determination of writ petitions. Time or delay is considered when determining whether to grant leave to proceed,[55] but no broader principles guide completion of judicial determination of writ petitions.

5.5. Fundamental Rights and the Two Months Requirement

[55] Case law on delays in writ proceedings indicates that delay is a relevant consideration at the leave stage.

The Constitution mandates that fundamental rights petitions be determined within two months of filing.[56] However, the Supreme Court has held that this requirement is directory rather than mandatory.[57] The constitutional requirement of two months is insufficient to accommodate the practical steps involved in fundamental rights litigation, which includes filing, service, objections, counter-affidavits, reply, oral submissions, written submissions and judgment writing. The Supreme Court rules attest to this procedural issue.[58] This has led to a situation where a constitutional requirement has, in effect, been rendered meaningless.

As illustrated in Figure 5, the data confirm serious concerns already noted about delays in the court system.[59]

[37% of FR petitions took five or more years for resolution][image4]

Figure 5: 37% of FR petitions took five or more years for resolution

Of the 361 fundamental rights petitions in the dataset, 332 took 3 to 15 years for resolution. Of these, 140—almost half—took 10 to 15 years to be concluded. Around 37% of fundamental rights petitions took five or more years for resolution. Only 20% resolved within one year of filing. The mean time taken was 4.17 years (3.05 standard deviation)—a substantial variation from the constitutional requirement of two months.

The reasons for these delays require further investigation. Without data on the number of petitions that are dismissed by the Court at leave to proceed stage and the time taken for such dismissal. Court does not issue a judgement when a fundamental rights petition is dismissed which therefore leaves that aspect of the Court's work beyond empirical analysis. More generally, factors that contribute to the delay may include caseload, absence of strict time allocation for oral submissions, postponements sought by parties, and the time required to write judgments. More empirical and qualitative data is required to examine these issues in more detail.

5.6. Linguistic Patterns

5.6.1 Method and Salient Terms

[56] Art 126(5) of the Constitution.

[57] *Visuvalingam v Liyanage* 1 Sri LR 203 (1983) 226.

[58] Rule 45 of the Supreme Court Rules (as published by BASL 2021).

[59] 'Laws Delays as Abuse of Process: Fresh Perspectives and Critical Analysis' LST Review 17(236) (June 2007); Impact of legal delays TimesOnline (8 Feb 2019).

We performed mutual information analysis on the Supreme Court and Court of Appeal decisions to identify the most salient words in each corpus. Mutual information analysis quantifies the presence or absence of words within a corpus. The frequency of the words used can reveal attributes of the jurisprudence of both courts, providing helpful entry points for further jurisprudential analysis. We tokenized decisions and stemmed each token. We used a simple add 1 smoothing scheme to avoid zero probabilities.

5.6.2 Interpreting Linguistic Choices

The most salient word was 'grant', which appeared in 91% of Supreme Court decisions but only in 32% of Court of Appeal decisions. The underlying reason is procedural: Supreme Court decisions routinely reference the granting of leave to appeal—both the grounds on which leave was granted and the date—in the decision text. This reflects a procedural practice rather than a substantive legal distinction but nonetheless marks a clear linguistic difference between the two courts.

The words 'answer', 'question', and 'law' appear frequently in Supreme Court decisions because the court is called upon to answer questions of law. Although the Court of Appeal is also an appellate court, the same words have a lower prevalence in its decisions. This linguistic pattern reflects the Supreme Court's role as the final court of appeal on questions of law and its function in establishing legal precedent through reasoned answers to legal questions.

The word 'err' appears in 24% of Supreme Court decisions but only in 1% of Court of Appeal decisions. On closer inspection, we observed that the word appears in the context of Supreme Court justices holding a lower court judge to have erred in their judgement. Such language is almost never used in Court of Appeal decisions despite the court's appellate jurisdiction. This is a striking finding. Both courts exercise appellate jurisdiction and review decisions of lower tribunals. Yet the Supreme Court routinely employs the language of error—stating explicitly that a judge erred—while the Court of Appeal rarely does so. This may reflect the Supreme Court's hierarchical position at the apex of the judicial system, where it exercises supervisory authority not only over outcomes but over legal reasoning itself. The Court of Appeal, positioned between the High Courts and the Supreme Court, may adopt a less overtly corrective tone even when reversing lower court decisions.

The high prevalence of the words 'paragraph' and 'refer' in Supreme Court decisions arises from the court's practice of referring to specific sections of petitions, the Constitution, and other legislation. This reflects a more formal writing style in the Supreme Court compared to the Court of Appeal.

Supreme Court decisions are more citation-heavy, more explicitly structured, and more systematically organized through numbered paragraphs and cross-references. This linguistic formality aligns with the court's institutional role as the authoritative interpreter of law and the generator of binding precedent.

These linguistic patterns reflect hierarchical position and institutional culture. The Supreme Court writes as the apex court—correcting error, answering questions of law, formally citing and cross-referencing legal materials. The Court of Appeal, despite its substantial caseload and significant role in dispute resolution, writes in a less formally structured style that reflects its intermediate position in the judicial hierarchy. Linguistic choices are not merely stylistic; they encode institutional roles, hierarchical relationships, and conceptions of judicial authority.

Linguistic patterns reveal how courts write, but volume patterns reveal when and how much they produce. The Supreme Court's output varied significantly across the decade under review, with notable peaks and troughs that correlate with constitutional developments affecting judicial independence.

5.7 Quantitative Patterns

We tokenized decisions using the regex pattern [A-Za-z]+, discounting all punctuation and numbers. The mean length of a Supreme Court decision is 3646 tokens (3038 SD) and that of a Court of Appeal decision is 1688 tokens (2091 SD). Although Supreme Court decisions are, on average, longer, the longest decision in the corpus was a Court of Appeal decision. This judgment on an appeal of a determination by the Tax Appeal Commission against Unilever Sri Lanka Limited (CA/TAX/04/2013) is 35,630 tokens long. The longest Supreme Court decision, at 29,620 tokens, was on the fundamental rights petition SC/FR/141/2015 filed by Centre for Environment and Nature Studies against Northern Power Company (Pvt) Ltd which operated a thermal power plant in Chunnakam, Jaffna and was alleged to have been responsible for contaminating the village's groundwater.

5.8 Judgment Length by Court and Case Type

Judgment length varies systematically across courts and case types. Supreme Court decisions are, on average, substantially longer than those of the Court of Appeal, and exhibit greater dispersion in length, as shown in Figure 6. Across all Supreme Court cases, the median judgment length is 2,856 words, with a mean of 3,646 words and a standard deviation of 3,038 words, indicating a strongly right-skewed distribution. Court of Appeal decisions are markedly shorter, with a median length of

1,184 words, a mean of 1,688 words, and a lower standard deviation of 2,091 words, suggesting more constrained variation in judicial writing.

[Supreme Court judgments are, on average, longer than Court of Appeal ones][image5]

Figure 6: Supreme Court judgments are, on average, longer than Court of Appeal ones

These structural differences persist within the principal public law jurisdictions of each court. Fundamental Rights (FR) judgments of the Supreme Court are longer than the Court's overall baseline, with a median length of 3,022 words, a mean of 3,805 words, and a standard deviation of 3,157 words, reflecting both doctrinal density and substantial variation in judicial treatment. Court of Appeal writ decisions are marginally longer than the Court of Appeal average (median 1,303; mean 1,836), but remain comparatively concise and less dispersed (standard deviation 1,970). Over time, average judgment length has increased in both courts, with the most pronounced growth observed in Supreme Court Fundamental Rights cases, as illustrated in Figure 7.

[Average judgment length increased over time across courts and jurisdiction][image6]

Figure 7: Average judgment length increased over time across courts and jurisdiction

There are no apparent formal guidelines or standards governing the length of judicial decisions, and length itself should not be confused with quality. The persuasiveness and authority of a judgment depend on accurate identification of material facts, engagement with relevant precedent, and coherent application of law to fact. Nonetheless, the increasing length of judgments—particularly in the Supreme Court—does reflect a growing volume of judicial labour, including more extensive factual narration, doctrinal exposition, and engagement with comparative or constitutional reasoning.

More importantly, variation in judgment length mirrors entrenched doctrinal hierarchies within Sri Lanka's public law system. Fundamental Rights petitions, though fewer in number than writ applications, receive significantly more extensive judicial treatment, underscoring their elevated constitutional status. Similarly, Supreme Court decisions consistently exhibit greater length and variability than those of the Court of Appeal. The empirical patterns thus reinforce doctrinal expectations: constitutional adjudication commands deeper and more discursive reasoning than administrative review, and apex court judgments function as primary sites of legal exposition and norm-setting. Together with earlier findings on caseload composition, temporal delay, and output variation, judgment length provides a further window into how institutional role, jurisdiction, and doctrinal priority shape judicial practice.

The patterns identified thus far—quantitative dominance, writ prevalence, temporal dysfunction, substantive concentration, linguistic hierarchies, output variations, and decision length—describe how courts work. Outcome data provide a final empirical lens: how often do courts dismiss versus allow petitions?

5.9. Dissmials and Leave to Proceed

Dismissal, in this section, means dismissal after a full hearing. Writs and fundamental rights petitions proceed in two stages: an initial leave determination followed by a full hearing if leave is granted. SriLankaCourtDecisions does not include data on dismissals at the leave stage, as these are typically not recorded as written judgments. The actual dismissal rates are therefore higher than the data suggests.

Table 3: Proportion of Decisions Dismissed vs Allowed

	Dismissed	Allowed
Supreme Court	532 (41.63%)	746 (58.37%)
Court of Appeal	3651 (49.92%)	3663 (50.08%)

In Table 3, we can observe that about half of the decisions in the Court of Appeal dismissed their petitions or appeals. In the Supreme Court, however, the majority of decisions (58%) allowed the petition or appeal to stand. Of the decisions on writs in the Court of Appeal, 55% were allowed and 45% were dismissed. In the Supreme Court, 62% of the decisions on fundamental rights petitions were allowed and 38% were dismissed.

The outcome patterns also differ. Of the decisions on writs in the Court of Appeal that were fully adjudicated, 55% were allowed and 45% were dismissed. In the Supreme Court, 62% of fundamental rights decisions were allowed and 38% were dismissed. After petitions clear the leave to proceed stage in either jurisdiction, the probability favours the petitioner—but fundamental rights petitions show a slightly higher success rate than writs.

Whether a petition is upheld or dismissed depends on multiple factors: the strength of the petitioner's claim, the applicable legal or constitutional doctrine, the quality of submissions, and the exercise of judicial discretion. Outcomes cannot be predicted based solely on empirical patterns.

While this data does not directly reveal jurisprudential trends, perceptions abound about judicial

attitudes toward petitions—whether courts are prone to dismiss or allow claims. Empirical methods suggest rough parity: neither court is systematically biased toward dismissal or allowance. The Court of Appeal maintains near parity (50% allowed versus 49% dismissed), while the Supreme Court shows only a slight tendency to allow petitions. Only a qualitative assessment can add clarity on why and when courts dismiss or grant leave to proceed in these instances.

After petitions clear the leave to proceed stage, the probability favors the petitioner. This suggests that the leave stage functions as a significant filter: petitions that survive this threshold have reasonable prospects of success. The slightly higher success rate for fundamental rights petitions (62%) compared to Court of Appeal writs (55%) may reflect either the nature of constitutional claims or the additional scrutiny applied at the leave stage in fundamental rights jurisdiction.

5.10. Topics of Common Concern to both courts

To understand the latent topics and their word distributions present in court decisions, we applied Latent Dirichlet Allocation (LDA)[60] to SriLankaCourtDecisions. We used the Gensim implementation of LDA with the following parameters: 20 topics and random seed of 0 with all other values set to defaults. In addition to tokenizing and stemming, we removed all tokens that appeared in less than 20 documents as well as tokens that recurred in more than 50% of documents. We also removed all tokens that were less than 3 characters long.

To find the three most common topics across Supreme Court and Court of Appeal decisions, we first ran LDA on the entirety of SriLankaCourtDecisions under the experiment conditions described above. Then, we computed the average probability score for each of the 20 topics identified by LDA under the two sub corpora, independently, by summing the document-topic probability for a given topic for each document in the sub corpus and dividing by the total number of documents in the sub corpus. We obtained the three most common topics by summing the average probability scores for each topic across the two sub corpora and selecting the three topics with the highest scores, as shown in Table 4.

Table 4: Top-3 Topics with Highest Average Probability and Top-40 Tokens

Topic 1	Topic 2	Topic 3
defend	decis	accus

[60] David M Blei et al., "Latent Dirichlet Allocation," *Journal of Machine Learning Research* 3 (2003): 993–1022.

Topic 1	Topic 2	Topic 3
plaintiff	writ	sentenc
land	mark	trial
district	offic	wit
action	servic	high
titl	public	polic
deed	board	prosecut
possess	author	convict
trial	letter	offenc
lot	appoint	year
claim	univers	charg
plan	commiss	statement
partit	certiorari	incid
plaint	mandamu	victim
mark	secretari	code
owner	circular	defenc
share	member	offic
prescript	inquiri	imprison
substitut	post	commit
road	administr	hous
decre	committe	impos
corpu	director	ground
silva	quash	inform
right	ministri	crimin
properti	document	count
answer	requir	consid
entitl	year	indict
schedul	natur	call
disput	depart	complain
prove	power	day
perera	minist	find
enter	petit	doubt

Topic 1	Topic 2	Topic 3
transfer	promot	punish
origin	approv	deceas
posit	observ	place
deceas	recommend	found
proceed	council	arrest
surveyor	duti	penal
year	regul	examin
procedur	examin	prove

5.10.1. Topic 1: Land and Property Disputes

Topic 1 concerns land and property disputes, denoted by terms such as 'defend', 'plaintiff', 'land', 'district', 'action', 'titl', 'deed', 'possess', 'lot', 'claim', 'plan', 'partit', 'owner', 'prescript', 'road', 'silva', 'properti', 'disput', 'perera', 'transfer', 'surveyor', and 'procedur'. These terms reflect the vocabulary of land litigation—title disputes, prescriptive rights, partition actions, and ownership claims.

When we ran LDA on decisions that took ten or more years for resolution (num_topics=5 and random_seed=0), the most common topics were land and property disputes. The state owns most of the land in Sri Lanka.[61] The state's role as dominant landowner generates extensive litigation over state land alienation, encroachment, competing claims, and administrative decisions regarding land use and allocation.

In terms of addressing case load and delay, this data also points to land disputes as an area requiring substantive attention and institutional infrastructure. Current state interventions regarding delays—such as fast-tracking commercial disputes and promoting alternative dispute resolution—may be misplaced if they do not address the types of cases that actually dominate appellate court dockets. If land disputes are both pervasive and slow-moving, institutional reform ought to target this specific substantive area. This might include specialized tribunals, streamlined procedures for particular categories of land disputes, or administrative reforms to reduce the

[61] There is no consistency in how the percentage is calculated. The Advocata Institute rates it at 82% ((Advocata Institute, "Addressing the Land Problem," 2024, https://www.advocata.org/addressing-the-land-problem)) while the World Bank rates it at 85% ((World Bank, "Improving the Quality of Land Administration in Sri Lanka," 2024, https://www.worldbank.org/en/country/srilanka/publication/improving-the-quality-of-land-administration-in-sri-lanka)).

generation of land-related litigation in the first instance.

5.10.2. Topic 2: State Employment and Administrative Disputes

Topic 2 captures state employment and administrative disputes, denoted by terms such as 'decis', 'writ', 'mark', 'offic', 'servic', 'public', 'board', 'author', 'letter', 'appoint', 'univers', 'commiss', 'certiorari', 'mandamu', 'secretari', 'circular', 'member', 'inquiri', 'post', 'administr', 'committe', 'director', 'quash', 'ministri', 'document', 'depart', 'minist', 'promot', 'approv', 'recommend', and 'council'. This vocabulary reflects administrative law and public sector employment disputes—appointments, promotions, transfers, disciplinary inquiries, administrative circulars, and challenges to decisions by public boards, commissions, and ministries.

The dominance of state employment disputes, particularly visible in fundamental rights petitions, suggests that human resource management in the public sector places substantial burden on the court system. This finding tracks with earlier empirical work showing that Article 12 (equality) is overwhelmingly invoked by public servants challenging recruitments, transfers, or promotions.

This pattern raises questions about the effectiveness and confidence in administrative and quasi-judicial mechanisms such as the Administrative Appeals Tribunal, National Police Commission, and the Public Service Commission. Are they functioning effectively, or do courts primarily provide access to justice for public servants rather than the broader public? Arguably, if administrative tribunals, Public Service Commission procedures, and departmental appeal mechanisms were functioning effectively, fewer employment disputes would reach the appellate courts. The prevalence of such cases in the appellate dockets suggests either that administrative mechanisms are inadequate or that they are systematically bypassed in favour of judicial review. This has distributional consequences: if courts spend substantial time adjudicating public sector employment disputes, other types of claims—particularly those brought by marginalized communities or private citizens without institutional resources—may receive less attention. It would be useful to study the decisions of the Court of Appeal on writs in comparison with the decisions of the Provincial High Courts which exercise writ jurisdiction under Article 154(P). Those judgements are not yet accessible in the way appellate court judgements are available and hence their empirical study is not yet possible.

5.10.3. Topic 3: Criminal Proceedings

Topic 3 covers criminal proceedings, denoted by terms such as 'accus', 'sentenc', 'trial', 'wit', 'high', 'polic', 'prosecut', 'convict', 'offenc', 'charg', 'statement', 'incid', 'victim', 'code', 'defenc', 'imprison',

'commit', 'hous', 'impos', 'ground', 'inform', 'crimin', 'count', 'indict', 'complain', 'find', 'punish', 'deceas', 'place', 'found', 'arrest', 'penal', and 'examin'. This is the vocabulary of criminal appeals—charges, indictments, convictions, sentences, witnesses, evidence, and grounds of appeal.

The dominance of criminal proceedings as one of the three major topics reflects the Court of Appeal's role in hearing criminal appeals. This finding is unsurprising given the jurisdictional structure, but it confirms empirically what is known doctrinally: criminal appeals constitute a substantial portion of the Court of Appeal's workload.

5.10.4. Topic Distribution Analysis

A study of non-intersecting top 10 topics between the two sub corpora corroborates what we know about the structure of the legal system in the country. For instance, while appeals on criminal matters are heard by the Court of Appeal, appeals on civil matters, following the institution of the Civil Appeal High Court, are no longer heard by the Court of Appeal. The fifth and sixth most common topics in the Court of Appeal decisions—denoted by terms such as 'vehicl', 'owner', 'offenc', 'confisc', 'charg', 'forest', 'websit', 'accus', 'polic', 'regist', 'transport', 'station', 'driver', 'prove', 'timber', 'illeg', 'deceas', 'murder', 'injuri', and 'stab'—do not appear in the top 10 topics in the Supreme Court decisions. These terms reflect specific categories of criminal appeals (vehicle offences, forest offences, violent crimes) that fall within the Court of Appeal's jurisdiction.

Similarly, disputes between central government and administrative powers such as provincial councils and pradeshya sabhas are heard by the Supreme Court. The ninth most common topic in the Supreme Court decisions—denoted by terms such as 'council', 'member', 'writ', 'elect', 'sabha', 'provinci', 'pradeshiya', 'constitut', 'articl', 'power', 'minist', 'chairman', 'local', 'presid', 'governor', 'uva', 'appoint', and 'central'—does not appear in the top 10 topics in the Court of Appeal decisions. This topic captures the Supreme Court's constitutional jurisdiction over disputes involving provincial councils, local government bodies, and the distribution of powers between central and provincial authorities.

The topic distribution analysis thus confirms empirically the jurisdictional divide between the two courts and reveals the substantive areas that dominate their respective dockets. Land disputes, state employment disputes, and criminal appeals constitute the bread and butter of appellate adjudication in Sri Lanka—yet these areas receive far less scholarly and policy attention than high-profile constitutional cases.

Topic modeling reveals what courts decide. Mutual information analysis reveals how courts write—and what those linguistic choices encode about institutional hierarchies and judicial authority.

6. Insights for Administration of Justice, Legal Scholarship and Reform

In this section we briefly analyse the implications of the patterns that we have identified in section 5. We have demonstrated thus far, the way in which computational methods make visible patterns obscured by the landmark case or precedent focused approaches that dominates legal scholarship and professional discourse on case law. SriLankaCourtDecisions enables systematic study of appellate jurisprudence that was previously impossible. By analysing the entirety of decisions issued over a decade rather than selecting landmark cases, this approach reveals what courts actually do—not just what they say in celebrated constitutional moments.

Topic modelling identifies the substantive areas that dominate dockets. Mutual information analysis reveals linguistic patterns that encode institutional hierarchies. Quantitative analysis of decision volumes, timing, length, and outcomes provides empirical grounding for claims about judicial work, independence, and access to justice. These methods do not replace doctrinal analysis but rather, complement it by revealing the empirical realities within which doctrine operates, including by identifying gaps between doctrine, norms and practice. The patterns identified here—quantitative dominance, temporal dysfunction, substantive concentration—are not speculative. They are measurable features of appellate jurisprudence that demand explanation and, where warranted, reform. Insights from SriLankaCourtDecisions does not resolve these questions, but it provides an empirical foundation for engaging them.

The findings we have presented in section 5 are preliminary but sufficient to challenge received assumptions and warrant attention in the administration of justice, legal scholarship as well as in reform efforts. We present a research agenda that can flow from this work at the end of this article.

Quantitative versus doctrinal significance. In comparison to the Supreme Court, in relation to the number of judgements issued, the Court of Appeal numerically dominates. The Court of Appeal issues nearly six times as many judgments as the Supreme Court—yet remains jurisprudentially neglected. This quantitative contribution is understood only in an ad hoc manner by judiciary, practitioners, academics, and court observers. The doctrinal weight afforded to these two jurisdictions inverts their quantitative relationship and does not shed adequate light on their functional separation.

Why does the Court of Appeal, handling a larger volume of cases, resolve writs faster than the Supreme Court resolves fundamental rights petitions? This comparative puzzle raises questions about structural causes: backlog, judicial resources, and procedural practices and professional culture. The

answer likely lies in a combination of factors including differences in case complexity, the nature of public law adjudication, and institutional practices—but these require further investigation.

The writ-fundamental rights gap. Judgements on writ petitions vastly outnumber fundamental rights petitions in both courts, yet writ jurisprudence *qua* writs remains understudied.[62] Numerically, fundamental rights petitions are the exception; writs are the norm. In contrast, legal education, scholarly analysis, professional discourse and public debate privilege fundamental rights jurisprudence. The more common exercise of writ jurisdiction is overlooked. The data provide an alternative account to the view that writs and fundamental rights are blending in practice. If writs provide more routine access to justice than the constitutionally privileged fundamental rights jurisdiction, their comparative neglect may have distributive consequences which require further investigation. The prevalence and understudied nature of writ jurisprudence suggest a fundamental misalignment between scholarly attention and the disputes that dominate dockets. Extraordinary writs are not exceptional or peripheral—they are the mechanism through which ordinary disputes about land, employment, and state administration are adjudicated. Understanding writ jurisprudence is essential to understanding access to justice in practice.

The Question of Time. In the absence of even a directive regarding timely conclusion, writ petitions in the Court of Appeal are determined sooner than petitions on fundamental rights. In both courts however some petitions take much longer. These patterns provide an empirical basis for the concerns raised about delay but also sheds light on time as a relative factor between the two courts. The inversion between the two courts suggests that formal rules matter less than institutional capacity, resource allocation, and procedural culture. The structural causes remain unknown and demand investigation.

Systematic delays undermine the rule of law regardless of ultimate outcomes. The gap between procedural promise and empirical reality imposes costs on litigants—costs that fall disproportionately on those with fewer resources to sustain protracted litigation. Addressing delays requires confronting institutional capacity, case management practices, and procedural realities that quantitative analysis makes visible.

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[62] Some examples of the discussion of writ jurisprudence include the following: Mario Gomez, 'The Modern Benchmarks of Sri Lankan Public Law' (2001) 118 South African Law Journal 581; Mario Gomez, 'Blending Rights with Writs: Sri Lankan Public Law's New Brew' Acta Juridica (2006) 451; Saleem Marsoof, 'The Expanding Canvas of Judicial Review' (2005) 11 Bar Association Law Journal 18; Mario Gomez, 'Mixing Writs with Rights: The Implications for Public Law in Sri Lanka' (2023) 18(2) Asian Journal of Comparative Law 253; Chamila Talagala, 'The Writ Jurisdiction in Sri Lanka: A Confusion and Quandary?' Bar Association Law Journal (2020).

Land and employment concentration. Through topic modelling we identified that land disputes and state employment disputes as dominant themes in the public law jurisprudence of these courts. If delays and heavy caseloads are to be dealt with, reform efforts must address these areas specifically. Current interventions including fast-tracking commercial disputes and promoting alternative dispute resolution—may be misplaced if they do not address the types of cases that actually dominate the courts.

Substantive concentration in land disputes and state employment cases reveals that appellate courts function primarily as forums for resolving disputes with the state or its instrumentalities of the everyday type, rather than of significant issues of law that ought to warrant the attention of appellate courts. This pattern raises questions about the accessibility and effectiveness of lower courts for resolving such disputes and the role of appellate courts in managing state-citizen relations. Whether this concentration represents institutional design, litigation incentives, or systemic dysfunction warrants further investigation.

Linguistic and length patterns confirm hierarchies. Mutual information analysis and decision length data empirically confirm doctrinal hierarchies embedded in the Constitution, institutional design and in judicial practice. The Supreme Court writes as the apex court—correcting error, answering questions of law, formally citing legal materials. Fundamental rights judgments are longer than writ judgments. These patterns reflect institutional roles and doctrinal weight.

Numerical increase and decrease. During the period under review, the number of judgements on fundamental rights by the Supreme Court increased at the same time as the enactment of the 19th Amendment. In contrast, 2013-2015 a period marked by institutional crisis, saw depressed output. The Court of Appeal's output, by contrast, peaked in 2013. These patterns can be studied further to examine how and why litigants and practitioners chose between the two courts as well as to identify whether there can be a correlation between institutional stability, litigant/lawyer confidence in courts with the number of judgements issued.

Access to Justice. From an access to justice perspective, our assessment reveals that in effect, the Court of Appeal is the final arbiter, the primary court for judicial review in Sri Lanka. The Court of Appeal provides regular, accessible, and functionally final review of administrative action and jurisdictional errors. The low ratio of Supreme Court appeals suggests that Court of Appeal writ remedies effectively resolve disputes in most cases, making this jurisdiction a more substantial avenue for access to justice than its current recognition acknowledges.

Questions to consider in reform efforts. The findings of this study point toward specific areas for institutional reform, but implementing such reforms requires additional empirical work. If land disputes dominate long-duration cases, would specialized land tribunals reduce the burden on appellate courts? If state employment disputes constitute a substantial proportion of writ petitions, would strengthening the Administrative Appeals Tribunal and other such mechanisms reduce litigation?

Piloting procedural reforms – such as time limits for oral submissions, case management protocols for particular dispute types, or alternative dispute resolution mechanisms for specific categories of cases – would benefit from empirical baseline data against which to measure effectiveness. The SriLankaCourtDecisions corpus provides such baseline data for the appellate courts, but implementing and evaluating reform requires collaboration between researchers, judiciary, legal practitioners, and policymakers.

The constitutional mandate for two-month determination of fundamental rights petitions cannot be met under current conditions, but meaningful reform requires understanding what is feasible. Are there categories of fundamental rights petitions that could be resolved more quickly? Do particular procedural stages consume disproportionate time? Could interim relief mechanisms provide meaningful remedies while final adjudication proceeds?

Digitisation and Empirical Legal Research. The limitations of this study reflect broader limitations in Sri Lanka's legal system digitisation. At the time we began to work on the research for this paper, court registries were not digitised, case management systems were incomplete, and no centralised repository of judicial decisions existed. In 2025, many of these gaps are being addressed. The recent efforts to digitise the administration of justice bodes well for empirical legal research.

Building infrastructure for empirical legal research requires institutional investment in digitising records, standardising case numbering, and making data publicly accessible. Such infrastructure would benefit not only researchers but also legal practitioners, policymakers, and the public. Searchable, systematically organised court decisions would improve access to justice by making legal knowledge more readily available. Digitised registries would enable better case management and reduce administrative burden on court staff. Publicly accessible data on case filings, dispositions, and timelines would enhance transparency and accountability.

We propose that completing the digitisation of decisions from all levels of the judicial hierarchy and

making them accessible through stable, searchable platforms be a priority. The SriLankaCourtDecisions corpus demonstrates what is possible with publicly available data, but the limitations of the dataset reflect underlying gaps in legal system infrastructure. Addressing those gaps would enable far more comprehensive empirical analysis and, more importantly, would contribute to a more transparent, accessible, and accountable justice system.

4 Limitations

This study confronts limitations inherent to empirical legal research generally and to the specific constraints of legal system digitization in Sri Lanka. These limitations operate at multiple levels: methodological, temporal, archival, technical, and analytical. We address each in turn, noting how they constrain the claims advanced in this article and the research questions they leave open for future investigation.

The dataset confronts several constraints including temporal scope, data quality, digitization challenges, and coverage gaps. Despite these constraints, SriLankaCourtDecisions represents the most comprehensive corpus of Sri Lankan appellate judgments assembled to date and provides sufficient coverage for meaningful empirical analysis of recent trends in the Superior Courts.

The findings are preliminary but sufficient to challenge received assumptions and warrant attention in reform debates. The necessity of interpreting the empirical alongside the normative and doctrinal, and not in isolation, only increases in importance during the formulation of any such reform.

4.1. Methodological Limitations

The limitations of empirical legal research are well established. Unlike in natural sciences, even with data, we cannot establish causal inference and we cannot study the counterfactual.[63] What we can offer, in this instance, are descriptive statistical inferences and making our dataset publicly available for verification and further study.[64] Statistical pictures illustrate correlation but cannot be assumed to indicate causation, and therefore are inadvisable to be considered in isolation. The sheer amount of data that can be captured and processed via computational methods, however, runs the risk of concealing these limitations, resulting in a greater likelihood of researchers neglecting to recognize or address them.

The quantitative perspective we offer here of the jurisprudence of the Sri Lankan Courts 2012-2022 can be interpreted only when combined with doctrinal analysis. The limited empirical analysis we offer here does not probe the way in which legal or constitutional doctrine is developed or affected, nor does it query the normative approaches adopted in jurisprudence. The analysis offered here is exploratory and descriptive. The triangulation of quantitative analysis with qualitative analysis

[63] Epstein and Martin, *An Introduction to Empirical Legal Research*, 6–7.

[64] Epstein and Martin, *An Introduction to Empirical Legal Research*, 11–12, 15.

remains for future research. There are further prospects for this type of research, which we note here. The empirical assessment may be analysed in relation to qualitative influences on judicial decision making (known in language studies as content analysis) - whether it be specific legal doctrines, judicial dispensations, role of litigators or types of petitioners.

4.2. Temporal Scope

The dataset's temporal scope (2012-2022) represents only a fraction of Sri Lankan legal history and excludes significant earlier periods that shaped the country's jurisprudence. The Court of Appeal entries begin in 2011 and the Supreme Court entries begin 2010. Data availability thus determined our choice of time period. Due to the limitations in the digitization of judgments and court documents in Sri Lanka, any immediate use of computational methods for the study of courts is inherently confined to the judgments of the apex courts of the country that were issued during a limited period of time.

4.3. Data Availability and Archival Gaps

One of the barriers to a comprehensive assessment of the judicial approaches of Sri Lanka's apex courts is the incomplete reporting of judgments prior to 2012. From 1801 to 2011, the Law Reports feature judgments selected by an editorial committee under the Chief Justice of the Supreme Court and the President of the Court of Appeal. As a consequence of this, there is no source or database in Sri Lanka which captures the entire gamut of judgments issued by the apex courts from 1801 to 2011. What is available to the public, from this 200 year period prior to digitization, are only those judgments which the editorial committee, determined worthy of inclusion in the Law Reports.

Another barrier to a comprehensive study is the lack of information on how many cases or petitions are filed before the apex courts. Presumably, the Court Registrars are aware of this number; however, it is not released to the public. Consequently, the public only has access to the number of judgments a court delivers, and only post-2011. Without filing statistics, we cannot calculate dismissal rates, disposition rates, or the proportion of filed cases that result in published judgments. This gap significantly limits our ability to assess court performance comprehensively.

4.4. Data Quality and Digitization Challenges

What is available digitally is not complete nor error-free. Both websites contained substantial duplicate entries. Following deduplication based on case number and decision date, the corpus comprised 1278 Supreme Court judgments and 7314 Court of Appeal judgments. The deduplication process identified duplicates through exact matching of case numbers combined with decision dates;

in instances where the same case number appeared with different dates, we retained the entry with the more complete judgment text. While we conducted deduplication and quality checks, we cannot guarantee that all duplicates were identified or that all extracted text perfectly represents the original PDF documents.

Case numbers are not standardized, and while some aspects of (re)standardization are easy - for instance, correcting the year substring '11' to its standard form '2011' is straightforward - others, such as errors in the application type part of the case number, can only be manually fixed. Some judgments are image-only or scanned pdfs and needed to be read via OCR systems which invariably introduce further corrupting artefacts. A small number of judgments (fewer than 10 across the entire collection) required OCR conversion; we excluded these to maintain consistency in text extraction methodology and data quality. This exclusion, while maintaining data quality, may introduce slight bias if these judgments differ systematically from those successfully converted.

There are other deeper and more technical challenges. For instance, even though the apex courts function in English, judgments often quote substantial passages of vernacular text from lower court decisions. Sri Lankan names confound best-in-class named entity recognition models. Critical metadata is buried within unstructured judgment texts.

Extracting structured data from the court websites presented several challenges. Judge and bench information, while generally present, appears inconsistently across judgments - sometimes in formal headers, sometimes within the judgment text itself. We extracted this information using a combination of regular expressions and manual validation of a sample subset. The dataset reflects the limitations of the courts' digitization practices discussed above. Missing metadata fields, non-standardized case numbering, and inconsistent formatting constrain certain types of analysis.

Our scraping captured judgments as they appeared at the time of collection (February 2023 to April 2023); subsequent corrections or amendments to published judgments would not be reflected in the dataset. Although we have attempted to address several of these challenges in our present work, the findings therefore may remain affected by their residuary impact and other unknown issues.

4.5. Dataset Scope and Coverage

The corpus captures only those judgments that the courts chose to publish on their official websites; unpublished judgments, orders, and procedural decisions remain beyond our scope. The empirical data is the data available on the official websites of the Supreme Court and Court of Appeal. The

study relies on the official websites for the coverage of these judgments. However, courts issue many different orders, including interlocutory orders, interim relief, enjoining orders, and final judgments. To get a full picture, one would need to look at all of these, but our empirical study only looks at judgments.

Furthermore, there is an inconsistency in how the courts use "orders" versus "judgments". The Court of Appeal website currently has separate sections for judgments and orders, and often final judgments are published under the "Orders" section. This means that a portion of the court's output might be missed if only the "judgments" section is scraped.

In the case of writs and fundamental rights petitions, proceedings are in two stages. When a petition has been filed, the Court initially conducts a hearing to determine whether leave to proceed will be granted. At this stage, it is possible for a petition to be dismissed. However, whether or not a judgment or order is issued to record a dismissal, is at the discretion of the Courts. Where leave to proceed is granted, Court may also grant interim relief sought by the petitioner. In such instances, Court issues an order.

The SriLankaCourtDecisions corpus does not include data on dismissals at the leave to proceed stage as that data is not produced as a written record. To that extent the data on dismissal have a significant limitation as it does not depict the accurate number of dismissals by courts. The actual dismissal rates are therefore higher than the data suggests, since many petitions are dismissed at the leave stage without a written judgment being issued. This limitation affects our analysis of patterns in Section 5 below.

5 A Research Agenda for the Future

The empirical patterns identified in this study point toward concrete directions for further research. The limitations of the SriLankaCourtDecisions corpus – particularly the absence of precise filing and decision dates, incomplete records of dismissals at the leave stage, and the lack of systematic appeal data – define immediate priorities. Beyond addressing these data constraints, the substantive findings warrant targeted investigation into judicial performance, doctrinal development, and institutional dynamics.

A) Improving Temporal Analysis

The approximation method employed in this study – treating filing dates as June 30 of the filing year and Court of Appeal decision dates as the 15th of the decision month – introduces substantial measurement error. Obtaining precise dates would enable accurate calculation of case duration and reveal patterns currently obscured by aggregated estimates. This requires either digitisation of court registries or systematic manual extraction from case files.

More precise temporal data would permit analysis of whether delays concentrate in particular case types, whether they correlate with specific judicial panels, and whether procedural reforms have measurable effects. It would also enable survival analysis to identify the point at which cases are most likely to resolve and the factors that predict prolonged litigation. For instance, the constitutional mandate for two-month determination of fundamental rights petitions cannot be meaningfully evaluated without knowing when petitions were actually filed and when preliminary orders, interim relief, and final judgments were issued.

B) Mapping Appellate Pathways

The current dataset cannot distinguish Supreme Court decisions exercising original jurisdiction from those hearing appeals from the Court of Appeal. Coding decisions by jurisdictional basis would reveal how many Court of Appeal judgments are appealed, which substantive areas generate appeals, and what proportion of Court of Appeal decisions effectively resolve disputes without further review.

This analysis would test the hypothesis that the Court of Appeal's numerical dominance translates into practical authority because most disputes terminate there. If appeal rates are low, the jurisprudential neglect of Court of Appeal decisions constitutes a significant gap between doctrinal attention and institutional impact. If appeal rates are high in particular areas – land disputes, state

employment matters, or criminal convictions – that pattern would warrant investigation into why certain categories of decisions are more contestable or less authoritative.

Longitudinal tracking of individual cases across judicial levels would also reveal patterns in case disposition: which cases are overturned, and which are affirmed. This would provide empirical grounding for claims about error correction, doctrinal consistency, and the division of labour between appellate levels.

C) Capturing Dismissals at Leave Stage

The dataset excludes cases dismissed at the leave to proceed stage because such dismissals often generate no written judgment. The actual dismissal rate may therefore be substantially higher than the 41% (Supreme Court) and 49% (Court of Appeal) rates calculated from decided cases. Understanding judicial gatekeeping requires systematic collection of leave stage outcomes, including both grants and refusals.

This data exists in court registries but is not publicly accessible. Obtaining it would require either institutional cooperation to access registry records or systematic extraction from court databases. With this data, researchers could analyse: what proportion of filed petitions obtain leave; what distinguishes cases granted leave from those refused; whether leave grant rates vary across substantive areas, time periods, or judicial panels; and how the leave stage functions as a filter for substantive adjudication.

Leave grant rates have direct implications for access to justice. If most petitions are dismissed at the threshold, the barrier to relief may lie less in substantive adjudication than in the preliminary screening process. This would redirect reform attention toward transparency in leave determinations and development of clear standards governing threshold access to appellate jurisdiction. This limitation is particularly significant for understanding writ jurisdiction, where leave stage gatekeeping may explain why only 55% of fully adjudicated Court of Appeal writs are allowed compared to 62% of Supreme Court fundamental rights petitions—and why different petitioners may strategically choose different forums despite overlapping grounds for relief.

D) Investigating Delay Through Case Studies

While aggregate temporal data reveal systematic delays, understanding causation requires qualitative investigation. Case studies of long-duration disputes – particularly those taking ten or more years – would assist in identifying procedural bottlenecks, patterns of postponement, complexities specific to particular dispute types, and institutional practices that contribute to delay.

Land disputes dominate the longest-duration category, but the underlying reasons remain unclear. Is delay attributable to evidentiary complexity, the need for surveys and site inspections, difficulties in serving parties, postponements sought by litigants, or the time required for judicial consideration? Criminal appeals may face different delay factors: witness availability, the need for translation of lower court records, or the volume of appeals awaiting hearing. State employment disputes may involve delays in obtaining administrative records or the participation of multiple government departments.

Targeted case studies would reveal whether delays concentrate at particular procedural stages: between filing and leave determination, between leave and hearing, or between hearing and judgment delivery. If delays cluster at the judgment-writing stage, interventions might focus on judicial resources and case management. If delays cluster at earlier stages, procedural reform or administrative capacity becomes the priority.

E) Substantive Analysis of Dominant Topics

The identification of land disputes, state employment matters, and criminal appeals as dominant topics warrants substantive doctrinal analysis. Land dispute jurisprudence in Sri Lanka has received limited scholarly attention despite dominating appellate dockets. Systematic study of land dispute decisions would reveal patterns in how courts resolve competing claims, apply prescriptive acquisition doctrine, interpret state land alienation schemes, and manage disputes arising from incomplete or conflicting title records.

State employment disputes – particularly appointments, promotions, transfers, and disciplinary proceedings – reveal the extent to which appellate courts function as forums for resolving internal public sector disputes. Are courts effectively reviewing administrative discretion or are they substituting their judgment for administrative decisions? Do patterns in state employment cases reveal substantive inequality in how similarly situated public servants are treated? What proportion of petitioners succeed, and does success correlate with particular grounds of challenge or particular administrative bodies?

Criminal appeal patterns warrant analysis of conviction and sentence affirmation rates, the grounds on which appeals succeed, and whether particular categories of offences generate disproportionate appeals. Vehicle offences and forest offences appear as distinct topics in Court of Appeal decisions, suggesting these categories generate substantial litigation. Understanding why requires analysis of the applicable legal framework, enforcement patterns, and the availability of defences.

F) Linguistic and Stylistic Analysis

The mutual information analysis identified salient terms but did not pursue detailed linguistic or stylistic analysis. Further work could employ computational linguistics methods to analyse citation practices, reasoning structures, and rhetorical patterns in judgments. Do Supreme Court decisions cite more precedent than Court of Appeal decisions? Do fundamental rights judgments cite more constitutional provisions than statutory ones? Do judgments cite foreign jurisprudence, and if so, from which jurisdictions?

Stylistic analysis could also examine variation across judicial panels. Do particular justices employ distinct linguistic patterns, reasoning structures, or citation practices? This would not assess the quality of individual justices' work but would reveal whether judicial style varies systematically and whether such variation correlates with case outcomes or substantive areas.

Computational analysis of reasoning patterns – particularly the structure of legal arguments, the weight given to different sources of law, and the methods by which courts distinguish or apply precedent – would contribute to understanding how appellate courts develop doctrine. This requires more sophisticated natural language processing methods than employed in this preliminary study but is feasible with the existing corpus.

G) Comparative Institutional Analysis

The hypothesis that Supreme Court output correlates with judicial independence warrants rigorous testing through comparative analysis. This requires assembling additional variables: judicial appointment patterns, public statements by judges or judicial associations, legislative or executive actions affecting the judiciary, and external assessments of judicial independence from legal professional associations or civil society organisations.

Comparative analysis would also examine whether similar patterns exist in other common-law jurisdictions. Do courts exercising both original and appellate jurisdiction, like the Court of Appeal, consistently produce greater numerical output than apex courts exercising primarily appellate jurisdiction? Do constitutional mandates for expedited adjudication correlate with faster or slower resolution in practice? Do courts without such mandates perform better, and if so, what institutional or procedural factors explain the difference?

Such analysis would test whether the observed patterns are specific to Sri Lanka's constitutional and institutional context or reflect broader dynamics common to appellate courts in similar legal systems.

H) Expanding the Temporal and Jurisdictional Scope

The dataset covers 2012–2022, but extending the temporal scope backward would reveal longer-term trends. For instance, do constitutional amendments that reform the process for judicial appointments impact the work of the Court? How did the increase in the number of justices impact the same? Through a combination of empirical and qualitative study, it may be possible to seek answers to these questions.

Expanding the jurisdictional scope to include High Court decisions – where available in digitised form – would enable analysis of how disputes move through the judicial hierarchy. What types of cases generate appeals from High Courts to the Court of Appeal? Do particular High Court circuits generate disproportionate appeals, suggesting either greater caseload or distinct patterns in decision-making?

District Court and Magistrate Court decisions are not systematically digitised, but targeted collection of decisions in particular substantive areas would enable analysis of lower court jurisprudence and the extent to which appellate decisions align with or depart from lower court patterns.

I) Methodological Development

The computational methods employed in this study – topic modelling through LDA, mutual information analysis, and basic descriptive statistics – represent initial applications of established techniques. Further methodological development could employ more sophisticated approaches: dynamic topic modelling to reveal how topics shift over time, supervised machine learning to predict case outcomes based on textual features, and network analysis to map citation patterns among decisions.

The use of sentiment analysis – adapted to the specialized language of judicial decisions – could reveal whether particular dispute types or procedural contexts generate more emotive or more neutral judicial language. This would not assess the quality of decisions but would contribute to understanding how courts write about different categories of disputes.

Comparative corpus linguistics could analyse Sri Lankan judicial language against judgments from other jurisdictions, revealing distinctiveness or convergence in judicial style, citation practices, and reasoning structures.

6 Conclusion

In this paper, we introduced the SriLankaCourtDecisions corpus – a text corpus containing 1278 Supreme Court decisions and 7314 Court of Appeal decisions from Sri Lanka. We also presented some descriptive statistics on the performance of the country's apex courts, identified most salient words in the corpus, and modelled most common topics and their word distributions. As mentioned at the beginning, the primitive stage of digitalisation of Sri Lanka's legal system necessarily entails that the work of this paper, although a significant contribution in the compilation and sharing of the decision text corpus and initial insights, is also preliminary in nature. The computational methods used even at this stage, however, have yielded findings demonstrative of the functioning of the superior courts of Sri Lanka – often exposing or confirming trends within the justice system that merit further investigation, and in some cases, urgent solutions. For instance, the low ratio of Supreme Court appeals to Court of Appeal writ decisions (31:1,741 during 2012-2022) confirms empirically that the Court of Appeal serves as the practical forum for writ remedies, a structural reality obscured by doctrinal scholarship's focus on Supreme Court precedent. While the immediate next steps in relation to the corpus and computational analysis are clear and have been detailed above, they serve then not just to explore other features of the decision-making process in the Superior Courts, but also to further build on and explore some of the findings already highlighted in this paper.

The patterns identified in this study are preliminary but sufficient to warrant attention in both scholarly analysis and reform debates. The research directions outlined here are neither exhaustive nor speculative – they respond directly to gaps revealed by the empirical analysis of the SriLankaCourtDecisions corpus and address limitations in data, method, and scope that constrain present conclusions. Pursuing these directions would advance understanding of how appellate courts function, what disputes they resolve, and how judicial work relates to broader questions of access to justice, institutional design, and the rule of law.

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